Committee Secretary
Joint Standing Committee on Electoral Matters
By email: em@aph.gov.au

24 October 2025

Dear Secretary,

Submission to Joint Standing Committee on Electoral Matters' Inquiry into and report on all aspects of the conduct of the 2025 Federal Election and matters related thereto

This submission makes two recommendations which I elaborate below. I am also a Director of the Centre for Public Integrity and support the recommendations made in the Centre's submission.

My first recommendation is:

> *The Commonwealth Electoral Act 1918* (Cth) *should provide for anti-avoidance provisions of comprehensive scope in relation to the Act's political funding obligations, including obligations in relation to the expedited disclosure of donations.*

The Act currently has anti-avoidance provisions empowering the Australian Electoral Commission (AEC) to issue notices in certain circumstances in relation to:

- registration obligations as a significant third party and associated entity (s 287S);
- foreign donor controls (s 302H); and
- the prohibition on foreign campaigners incurring electoral expenditure or fundraising for that purpose (s 314AK).

There are, however, no anti-avoidance provisions in relation to

- Disclosure of donations (Division 4, Part XX);
- Disclosure of electoral expenditure (Division 5, Part XX); and
- Annual returns (Division 5A, Part XX).

The current anti-avoidance provisions are deficient in two respects: they are not comprehensive in scope and they do not make it an offence to engage in anti-avoidance conduct.

These deficiencies will be largely addressed when the *Electoral Legislation Amendment (Electoral Reform) Act 2025* (Cth) comes fully into effect on 1 July 2026 with its insertion of ss 314AS and 314AT. These provisions respectively provide for an offence of anti-avoidance and empower the AEC to issue notices in relation to anti-avoidance conduct. While their scope is broad, they oddly

to not include the provisions in relation to the expedited disclosure of donations. This omission should be rectified.

My second recommendation is that:

> *The Committee should undertake a dedicated inquiry into digital campaigning resources and their regulation.*

The International IDEA's 2019 Global State of Democracy report observed, '[n]ew technologies, including information and communications technologies (ICTs) and social media, are contributing to a profound transformation of the global democracy landscape'.

An under-examined aspect of this digital transformation globally and in Australia is the role of digital campaigning resources in the context of elections and referenda, that is resources used for digital campaigning (the use of digital technology for campaigning). Broadly speaking, these resources can be grouped into three categories:

- Digital data and analytics;
- Digital media resources; and
- Artificial intelligence (AI).

The Appendix extracts text from the draft introduction to a cross-national report (Australia, India, Indonesia, Taiwan) which I am leading for International IDEA tentatively entitled, *Digital campaigning resources in the Asia-Pacific: Pervasive use, piecemeal regulation.* This text explains the distinctive challenges digital campaigning resources pose to democracies – including Australia. These challenges should be subject to an in-depth examination by the Committee with a view to assessing whether the current electoral regulatory framework is adequate to these challenges.

I hope this submission is of assistance to the Committee.

Thank you.

Yours sincerely,

Professor Joo-Cheong Tham FASSA
Melbourne Law School
[redacted]

Appendix: Text from draft introduction to report for International IDEA tentatively entitled, *Digital campaigning resources in the Asia-Pacific: Pervasive use, piecemeal regulation* (forthcoming)

Digital campaigning resources and their distinctiveness

In the context of elections and referenda, digital campaigning resources can be understood as resources used for digital campaigning (the use of digital technology for campaigning). Broadly speaking, these resources can be grouped into three categories:

- Digital data and analytics;
- Digital media resources; and
- Artificial intelligence (AI).

Digital data and analytics

Data-driven political campaigning is on the rise.[1] Underpinning this development is the increasing use of data and data analytics. In this context, *data* refers to information that is collected through digital technology and encompasses a broad range of information (demographic data; data on political behaviour (including voting); data on other behaviour (including consumption choices and preferences)). *Digital analytics* refers to software applications that enable the collection, organising and analysis of data.

Political funding is necessary for digital campaigning data and analytics in order to establish the necessary infrastructure and skills. It is also essential for the purchase of data and micro-targeting (see Box 1: Digital micro-targeting).

[1] A. Barclay, R. Gibson and K. Dommett, 'The regulatory ecosystem of data driven campaigning in the UK', *Frontiers in Political Science*, 5 (2023), pp. 1–13, <https://doi.org/10.3389/fpos.2023.1146470>, accessed 20 October 2025; R. Gibson, E. Bon and A. Römmele, 'Operationalizing data-driven campaigning: Designing a new tool for mapping and guiding regulatory intervention', *Policy Studies*, 45/5 (2024), pp. 692–708, <https://doi.org/10.1080/01442872.2023.2259333>, accessed 20 October 2025.

Box 1: Digital micro-targeting

Micro-targeting can be understood as the use of data and data analytics to send tailored messages to particular individuals or groups. An infamous example of political micro-targeting is the campaign activities of the now-defunct Cambridge Analytica which harvested 50 million Facebook profiles[2] and used them to match messages to particular groups of voters in the United Kingdom Brexit referendum.[3]

While political micro-targeting is on the rise, its extent and patterns will be shaped by regulation.[4] It is unclear, for instance, whether political micro-targeting of the kind witnessed in the United States will be replicated in Europe given the European Union's General Data Protection Regulation (GDPR).[5]

Political micro-targeting raises challenges in terms of data surveillance and privacy. It also throws into the sharp relief the question as to legitimate forms of political influence and when personalised messages cross the line between persuasion and manipulation.

[2] C. Cadwalladr and E. Graham-Harrison, 'Revealed: 50 million Facebook profiles harvested for Cambridge Analytica in major data breach', *The Guardian*, 18 March 2018, <https://www.theguardian.com/news/2018/mar/17/cambridge-analytica-facebook-influence-us-election>, accessed 20 October 2025.

[3] House of Commons, Digital, Culture, Media and Sport Committee, *Disinformation and 'Fake News': Interim Report* (Fifth Report of Session 2017–19, HC 363, 29 July 2018), pp. 26–28, <https://publications.parliament.uk/pa/cm201719/cmselect/cmcumeds/363/363.pdf>, accessed 20 October 2025; V. Bakir, 'Psychological operations in digital political campaigns: Assessing Cambridge Analytica's psychographic profiling and targeting', *Frontiers in Communication*, 5 (2020), pp. 1–16, <https://doi.org/10.3389/fcomm.2020.00067>, accessed 20 October 2025.

[4] B. Bodó, N. Helberger and C. H. de Vreese, 'Political micro-targeting: A Manchurian Candidate or just a Dark Horse?' *Internet Policy Review*, 6/4 (2017), pp. 1–13, <https://hdl.handle.net/10419/214049>, accessed 20 October 2025; N. Witzleb, M. Paterson and J. Richardson (eds), *Big Data, Political Campaigning and the Law: Democracy and Privacy in the Age of Micro-Targeting* (Abingdon, Oxon: Routledge, 2020).

[5] C. J. Bennett, 'Voter databases, micro-targeting, and data protection law: Can political parties campaign in Europe as they do in North America?' *International Data Privacy Law*, 6/4 (2016), pp. 261–75, <https://doi.org/10.1093/idpl/ipw021>, accessed 20 October 2025; S. Kruschinski and A. Haller, 'Restrictions on data-driven political micro-targeting in Germany', *Internet Policy Review*, 6/4 (2017), pp. 1–23, <https://hdl.handle.net/10419/214051>, accessed 20 October 2025. See also T. Dobber, R. Ó Fathaigh and F. J. Zuiderveen Borgesius, 'The regulation of online political micro-targeting in Europe', *Internet Policy Review*, 8/4 (2019), pp. 1–20, <https://doi.org/10.14763/2019.4.1440>, accessed 20 October 2025.

Amongst the distinguishing features of digital campaigning data and analytics are:

- *Collection and analysis of 'big data':* Data is available at both scale and granularity. Digital analytics is correspondingly able to correlate and predict at similar scale and granularity. The 2008 Barack Obama United States Presidential campaign pioneered data-driven campaign with one of its key political strategists saying that its predictive modelling meant, 'We knew who these people were going to vote for before they decided'.[6]
- *Real-time processing* with contemporaneous updating of data and data analysis, enabling time-sensitive changes in campaigning tactics and allocation of resources.

There is also *opaqueness as to collection, accumulation and use of data:*

- *Personal data is often collected with the use of such data for campaigning purposes not being evident*. Data collection is central to the business models of digital platform companies. With Google the pace-setter, these companies operate through the logic of surveillance capitalism which is based on behavioural data being collected *en masse* and then rendered through data analytics to produce predictions of user behaviour.[7] These prediction products are sold to political actors to enable them to more effectively tailor their advertising on the companies' platforms.[8] Data-brokers, whose business is to collect and sell data, also source data privately and from public records.[9] In addition, governments collect data which may be used by them for campaigning and/or provided to political parties and candidates for campaigning.
- *The volume and detail of personal data accumulated for campaigning purposes is typically unknown to the individuals concerned*. This point applies to data accumulated by digital companies, governments, data brokers, political parties and candidates; and the individual profiles created by these commercial and political entities through numerous data points.
- *Data-driven political influence often occurs without specific disclosure of the data being used*. This is the case with data and algorithms underpinning search engine rankings (e.g.

[6] S. Issenberg, *The Victory Lab: The Secret Science of Winning Campaigns* (New York: Crown, 2012), p. 271.

[7] S. Zuboff, *The Age of Surveillance Capitalism: The Fight for a Human Future at the New Frontier of Power* (New York: PublicAffairs, 2019), pp. 93–97.

[8] 'Does Facebook sell my information?', *Facebook*, 2025, <https://www.facebook.com/help/152637448140583>, accessed 20 October 2025; 'How our business works', *Google*, n.d., <https://about.google/company-info/how-our-business-works/>, accessed 20 October 2025.

[9] T. Giorno, 'The third-party brokers who make millions selling your data to political groups', *Open Secrets*, 21 April 2022, <https://www.opensecrets.org/news/2022/04/the-third-party-brokers-who-make-millions-selling-your-data-to-political-groups/>, accessed 20 October 2025; E. Ayoub and E. Goitein, 'Closing the data broker loophole', *Brennan Center for Justice*, 13 February 2024, <https://www.brennancenter.org/our-work/research-reports/closing-data-broker-loophole>, accessed 20 October 2025.

Google), rankings that ~~rankings that~~ can significantly impact electoral outcomes;[10] as well as micro-targeting.

Digital media resources

Digital media resources refers to resources used for campaigning on digital media such as the internet (e.g. emails; webpages; advertising; search engine optimisation); social media (e.g. Facebook; Twitter; WhatsApp; TikTok; Snapchat; Instagram); and mobile services (e.g. SMS). Included within such resources are 'cybertroops' (defined as government, military or political party teams committed to manipulating public opinion over social media).[11]

In Web 1.0 where the predominant digital media was the internet, an argument could be made that there was nothing particularly distinctive regarding digital media resources given the typical use of such media was to communicate off-line material.[12] The same cannot, however, be said of Web 2.0 and its pervasive use of social media (website and other applications that allow for sharing of content). Distinguishing features of social media include:

- *Mass user-created content:* Having a Facebook or X (formerly Twitter) account is sufficient for a platform to communicate one's political views.
- *Personalisation of information received* with risk of 'echo chambers'[13] and 'filter bubbles'.[14]
- *Decline of general intermediaries* such as newspapers, radio and television broadcasters in shaping and influencing political communication and debate.
- *Political communication increasingly taking place through the digital social network* with diverse and differentiated communities of interest and nodes of influence (including social media influencers).

[10] R. Epstein and R. E. Robertson, 'The search engine manipulation effect (SEME) and its possible impact on the outcomes of elections', *Proceedings of the National Academy of Sciences of the United States of America*, 112/33 (2015), pp. E4512–21, <https://doi.org/10.1073/pnas.1419828112>, accessed 20 October 2025.

[11] S. Bradshaw and P. N. Howard, 'Troops, Trolls and Troublemakers: A Global Inventory of Organized Social Media Manipulation', Computational Propaganda Research Project, University of Oxford, Working Paper No. 2017.12, 17 July 2017, <https://demtech.oii.ox.ac.uk/wp-content/uploads/sites/12/2017/07/Troops-Trolls-and-Troublemakers.pdf> accessed 20 October 2025.

[12] R. Gibson, 'Web campaigning from a global perspective', *Asia-Pacific Review*, 11/1 (2004), pp. 95–126, <https://doi.org/10.1080/13439000410001687779>, accessed 20 October 2025; D. G. Lilleker and N. A. Jackson, 'Elections 2.0: Comparing e-campaigns in France, Germany, Great Britain and the United States', in E. J. Schweitzer and S. Albrecht (eds), *Das Internet im Wahlkampf: Analysen zur Bundestagswahl 2009* (Wiesbaden: VS, Verlag für Sozialwissenschaften, 2011).

[13] C. R. Sunstein, *#Republic: Divided Democracy in the Age of Social Media* (Princeton: Princeton University Press, 2018).

[14] E. Pariser, *The Filter Bubble: What the Internet is Hiding From You* (New York: Penguin Press, 2011).

While digital media has in some ways lowered the costs of political communication, it has increased it in others. Patterns of political funding will determine the respective capacity of political actors to effectively design and place digital media ads (including micro-targeting) and to engage cyber-troops,[15] including social media influencers.[16]

The widespread use of social media comes hand-in-hand with social media companies (including Meta, X and ByteDance which owns TikTok) performing powerful roles as:

- *Regulatory architects* in establishing the framework of social media not only based on personalisation but the 'attention economy'[17] which places a premium on virality[18] (including emotional appeals).[19]
- *Arbiters of content* through algorithms that determine the circulation of social media; and 'black-listing' and 'white-listing' social media users and censoring content, at times at the behest of governments.[20]

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[15] S. Bradshaw and P. N. Howard, 'Troops, Trolls and Troublemakers: A Global Inventory of Organized Social Media Manipulation', Computational Propaganda Research Project, University of Oxford, Working Paper No. 2017.12, 17 July 2017, <https://demtech.oii.ox.ac.uk/wp-content/uploads/sites/12/2017/07/Troops-Trolls-and-Troublemakers.pdf> accessed 20 October 2025; S. Bradshaw, H. Bailey and P. N. Howard, 'Industrialized Disinformation: 2020 Global Inventory of Organised Social Media Manipulation', Computational Propaganda Research Project, University of Oxford, Working Paper No. 2021.1, 13 January 2021, <https://demtech.oii.ox.ac.uk/research/posts/industrialized-disinformation/>, accessed 21 October 2025; Masduki, 'Cyber-troops, digital attacks, and media freedom in Indonesia', *Asian Journal of Communication*, 32/3 (2022), pp. 218–33, <https://doi.org/10.1080/01292986.2022.2062609>, accessed 21 October 2025.

[16] J. C. Ong, R. Tapsell and N. Curato, *Tracking Digital Disinformation in the 2019 Philippine Midterm Election*, New Mandala, August 2019, <http://hdl.handle.net/1885/281673>, accessed 21 October 2025; N. Tan, 'Digital learning and extending electoral authoritarianism in Singapore', *Democratization*, 27/6 (2020), pp. 1073–91, <https://doi.org/10.1080/13510347.2020.1770731>, accessed 21 October 2025; Y. Sastramidjaja, W. Berenschot, Wijayanto and I. Fahmi, 'The threat of cyber troops', *Inside Indonesia*, 13 October 2021, <https://www.insideindonesia.org/editions/edition-146-oct-dec-2021/the-threat-of-cyber-troops>, accessed 21 October 2025.

[17] 'The attention economy: Why do tech companies fight for our attention?' *Centre for Human Technology*, n.d., <https://www.humanetech.com/youth/the-attention-economy>, accessed 21 October 2025.

[18] C. L. Carpentier, 'New economics for sustainable development: Attention Economy', *United Nations Economist Network*, n.d., <https://www.un.org/sites/un2.un.org/files/attention_economy_feb.pdf>, accessed 21 October 2025.

[19] E. Akpinar and J. Berger, 'Valuable virality', *Journal of Marketing Research*, 54/2 (2017), pp. 318–30, <https://doi.org/10.1509/jmr.13.0350>, accessed 21 October 2025.

[20] See, e.g., K. Klonick, 'The new governors: The people, rules, and processes governing online speech', *Harvard Law Review*, 131/6 (2018), pp. 1598–1670, <https://www.jstor.org/stable/44865879>, accessed 21 October 2025; K. Langvardt, 'Regulating online content moderation', *Georgetown Law Journal*, 106/5 (2018), pp. 1353–88, <https://dx.doi.org/10.2139/ssrn.3024739>, accessed 21 October 2025; R. Gorwa, R. Binns and C. Katzenbach, 'Algorithmic content moderation: Technical and political challenges in the automation of platform governance', *Big Data & Society* (2020), pp. 1–15, <http://dx.doi.org/10.1177/2053951719897945>, accessed 21 October 2025; E. Lee, 'Moderating content moderation: A framework for nonpartisanship in online governance', *American University Law Review*, 70/3 (2021), pp. 913–1060, <https://scholarship.kentlaw.iit.edu/fac_schol/1078>, accessed 21 October 2025; E. Douek, 'Content moderation as systems thinking', *Harvard Law Review*, 136/2 (2022), pp. 526–607,

- *Shapers of political messages* by being actively involved in the design of political advertising on social media (as in United States).[21]

Artificial intelligence

Artificial intelligence (AI) refers to computing systems that simulate human intelligence in terms of the performance of complex tasks such as reasoning, decision-making and problem solving (including image and speech recognition and creation). AI has been broadly classified into narrow AI which are designed to perform specific tasks (e.g. improving Google search results)[22] and general AI which is AI that possess the ability to understand, learn and perform any task that humans can.[23] There is now a growing range of narrow AI systems including generative AI (AI systems that can create images, text and audio). While some have predicted the advent of general AI,[24] others contest its possibility.[25]

The distinctive uses of AI as a digital campaigning resource is deeply connected with those of data and data analytics and digital media resources:

- AI has been said to be 'the engine behind Big Data Analytics';[26]

<https://dx.doi.org/10.2139/ssrn.4005326>, accessed 21 October 2025; B. Dvoskin, 'The illusion of inclusion: The false promise of the new governance project for content moderation', *Fordham Law Review*, 93/4 (2025), pp. 1315–75, <https://dx.doi.org/10.2139/ssrn.4785833>, accessed 21 October 2025.

[21] See, e.g., D. Kreiss and S. C. McGregor, 'Technology firms shape political communication: The work of Microsoft, Facebook, Twitter, and Google with campaigns during the 2016 US presidential cycle', *Political Communication*, 35/2 (2018), pp. 155–77, <https://doi.org/10.1080/10584609.2017.1364814>, accessed 21 October 2025; M. Bossetta, 'Scandalous design: How social media platforms' responses to scandal impacts campaigns and elections', *Social Media + Society*, 6/2 (2020), pp. 1–4, <https://doi.org/10.1177/2056305120924777>, accessed 21 October 2025; U. Reisach, 'The responsibility of social media in times of societal and political manipulation', *European Journal of Operational Research*, 291 (2021), pp. 906–17, <https://doi.org/10.1016/j.ejor.2020.09.020>, accessed 21 October 2025; U. Aytac, 'Digital domination: Social media and contestatory democracy', *Political Studies*, 72/1 (2024), pp. 6–25, <https://doi.org/10.1177/00323217221096564>, accessed 21 October 2025.

[22] M. Liedtke, 'Google unleashes AI in search, raising hopes for better results and fears about less web traffic', *AP News*, 16 May 2024, <https://apnews.com/article/google-search-ai-overviews-internet-traffic-ebb6bbbde17ed29a5f7b630d9e5e285b>, accessed 21 October 2025.

[23] 'Exploring the differences between narrow AI, general AI, and superintelligent AI', *Institute of Data*, 6 October 2023, <https://www.institutedata.com/blog/exploring-the-differences-between-narrow-ai-general-ai-and-superintelligent-ai/>, accessed 21 October 2025.

[24] J. Baum and J. Villasenor, 'How close are we to AI that surpasses human intelligence?' *Brookings*, 18 July 2023, <https://www.brookings.edu/articles/how-close-are-we-to-ai-that-surpasses-human-intelligence/>, accessed 21 October 2025.

[25] R. Fjelland, 'Why general artificial intelligence will not be realized', *Humanities and Social Sciences Communications*, 7 (2020), pp. 1–9, <https://doi.org/10.1057/s41599-020-0494-4>, accessed 21 October 2025.

[26] K. Manheim and L. Kaplan, 'Artificial intelligence: Risks to privacy and democracy', *Yale Journal of Law & Technology*, 21 (2019), pp. 106–88, <https://yjolt.org/artificial-intelligence-risks-privacy-and-democracy>, accessed 21 October 2025.

- Key AI uses in elections include user profiling and micro-targeting;[27]
- The use of bots (automated social media accounts, often built to appear and act like actual persons)[28] in elections is increasingly AI-powered.[29]

Due to the increased speed, scale and effectiveness AI brings to these uses, it significantly amplifies the risks of data and data analytics and digital media resources.[30] Of particular concern are the use of 'deepfakes' in elections.[31] These are images created by generative AI that (convincingly) misrepresent a person as doing or saying something s/he did not, giving rise to the problem of 'counterfeit speech'.[32]

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[27] K. Kertysova, 'Artificial intelligence and disinformation: How AI changes the way disinformation is produced, disseminated, and can be countered', *Security and Human Rights*, 29/1-4 (2018), pp. 55–81, <10.1163/18750230-02901005>, accessed 21 October 2025.

[28] P. N. Howard, S. Woolley and R. Calo, 'Algorithms, bots, and political communication in the US 2016 election: The challenge of automated political communication for election law and administration', *Journal of Information Technology & Politics*, 15/2 (2018), pp. 81–93, <https://doi.org/10.1080/19331681.2018.1448735>, accessed 21 October 2025; S. C. Woolley, 'Bots and computational propaganda: Automation for communication and control', in N. Persily and J. A. Tucker (eds), *Social Media and Democracy: The State of the Field, Prospects for Reform* (Cambridge, UK, Cambridge University Press, 2020).

[29] C. Hu, 'How AI bots could sabotage 2024 elections around the world', *Scientific American*, 13 February 2024, <https://www.scientificamerican.com/article/how-ai-bots-could-sabotage-2024-elections-around-the-world/>, accessed 21 October 2025; N. Hajli, 'Election disinformation: How AI-powered bots work and how you can protect yourself from their influence', *The Conversation*, 10 April 2024, <https://theconversation.com/election-disinformation-how-ai-powered-bots-work-and-how-you-can-protect-yourself-from-their-influence-227174>, accessed 21 October 2025.

[30] E. Judson et al., *Synthetic Politics: Preparing Democracy for Generative AI* (Demos/UCL, March 2024), <https://apo.org.au/node/326166>, accessed 21 October 2025.

[31] R. L. Hasen, 'Deep fakes, bots, and siloed justices: American election law in a "post-truth" world', *Saint Louis University Law Journal*, 64/4 (2020), pp. 535–67, <https://scholarship.law.slu.edu/lj/vol64/iss4/3/>, accessed 21 October 2025; N. Diakopoulos and D. Johnson, 'Anticipating and addressing the ethical implications of deepfakes in the context of elections', *New Media & Society*, 23/7 (2021), pp. 2072–98, <https://doi.org/10.1177/1461444820925811>, accessed 21 October 2025; J. Langa, 'Deepfakes, real consequences: Crafting legislation to combat threats posed by deepfakes', *Boston University Law Review*, 101/2 (2021), pp. 761–802, <https://www.bu.edu/bulawreview/files/2021/04/LANGA.pdf>, accessed 21 October 2025; A. Ray, 'Disinformation, deepfakes and democracies: The need for legislative reform', *UNSW Law Journal*, 44/3 (2021), pp. 983–1013, <https://ssrn.com/abstract=3991288>, accessed 21 October 2025; M. Pawelec, 'Deepfakes and democracy (theory): How synthetic audio-visual media for disinformation and hate speech threaten core democratic functions', *Digital Society*, 1 (2022), pp. 1–37, <https://doi.org/10.1007/s44206-022-00010-6>, accessed 21 October 2025; B. van der Sloot and Y. Wagensveld, 'Deepfakes: Regulatory challenges for the synthetic society', *Computer Law & Security Review*, 46 (2022), pp. 1–15, <https://doi.org/10.1016/j.clsr.2022.105716>, accessed 21 October 2025; F. R. Moreno, 'Generative AI and deepfakes: A human rights approach to tackling harmful content', *International Review of Law, Computers & Technology*, 38/3 (2024),pp. 297–326, <https://doi.org/10.1080/13600869.2024.2324540>, accessed 21 October 2025.

[32] R. Green, 'Counterfeit campaign speech', *Hastings Law Journal*, 70/6 (2019), pp. 1445–89, <https://ssrn.com/abstract=3265247>, accessed 21 October 2025.

Key democratic principles implicated by digital campaigning resources

The central concern of the report is with democracy. Democracy is fundamentally based on the idea of popular sovereignty. As Article 21 of the *Universal Declaration of Human Rights* puts it, '(t)he will of the people shall be the basis of the authority of government'. This core idea has two key elements: popular control and political equality.

Digital campaigning resources pose serious implications for four democratic principles (transparency; fairness; political freedoms; self-determination).[33] The *principle of transparency* is vital in terms of accountability of electoral contestants and participants and government. This principle extends for the same reason to digital companies – it has been strongly argued that the major problem of the digitisation of politics is 'unaccountable power'.[34] Transparency is also essential for informed voting and monitoring the impact of digital campaigning resources on other democratic principles. In the context of digital campaigning resources, the key elements of transparency are:

- *Who* is using digital campaigning resources?
- *What* resources are they using?
- *How* are they using such resources?

The *principle of fairness* is a function of political equality.[35] It includes fairness amongst contestants in elections and referenda in terms of digital campaigning resources - to what extent do such resources level the playing field as opposed to exacerbating resource inequality?[36] It extends to the unfair consequences of disinformation[37] (see Box 2: The specific dangers of digital

[33] D. Tambini, 'Social media power and election legitimacy', in M. Moore and D. Tambini (eds), *Digital Dominance: The Power of Google, Amazon, Facebook, and Apple* (New York: Oxford University Press, 2018), <http://eprints.lse.ac.uk/id/eprint/87370>, accessed 21 October 2025.

[34] J. Susskind, *The Digital Republic: On Freedom and Democracy in the 21st Century* (New York: Pegasus Books, 2022).

[35] C. R. Beitz, *Political Equality: An Essay in Democratic Theory* (Princeton, N.J.: Princeton University Press, 1989).

[36] See D. G. Lilleker and N. A. Jackson, 'Elections 2.0: Comparing e-campaigns in France, Germany, Great Britain and the United States', in E. J. Schweitzer and S. Albrecht (eds), *Das Internet im Wahlkampf: Analysen zur Bundestagswahl 2009* (Wiesbaden: VS, Verlag für Sozialwissenschaften, 2011); R. Gibson, A. Römmele and A. Williamson, 'Chasing the digital wave: International perspectives on the growth of online campaigning', *Journal of Information Technology & Politics*, 11/2 (2014), pp. 123–29, <https://doi.org/10.1080/19331681.2014.903064>, accessed 21 October 2025; K. Koc-Michalska, R. Gibson and T. Vedel, 'Online campaigning in France, 2007–2012: Political actors and citizens in the aftermath of the web.2.0 evolution', *Journal of Information Technology & Politics*, 11/2 (2014), pp. 220–44, <https://doi.org/10.1080/19331681.2014.903217>, accessed 21 October 2025.

[37] See, e.g., D. Freelon and C. Wells, 'Disinformation as political communication', *Political Communication*, 37/2 (2020), pp. 145–56, <https://doi.org/10.1080/10584609.2020.1723755>, accessed 21 October 2025; F. B. Keller et al., 'Political astroturfing on Twitter: How to coordinate a disinformation campaign', *Political Communication*, 37/2 (2020), pp. 256–80, <https://doi.org/10.1080/10584609.2019.1661888>, accessed 21 October 2025; J. Lukito, 'Coordinating a multi-platform disinformation campaign: Internet Research Agency activity on three US social media platforms, 2015 to 2017', *Political Communication*, 37/2 (2020), pp. 238–55,

disinformation). There are also pressing issues of fairness in terms of how the government acts in relation to digital campaigning resources as well as the actions of digital companies in their various roles (regulatory architects, arbiters of contents, shapers of political messages).

Box 2: The specific dangers of digital disinformation

Disinformation can be understood as 'the deliberate creation and sharing of false and/or manipulated information that is intended to deceive and mislead audiences, either for the purposes of causing harm, or for political, personal or financial gain'.[38]

Political disinformation is certainly not new – political lies are as old as politics. Equally, the following features of digital campaigning resources make the danger of political disinformation more acute so much so that they have been characterised as 'lie machines'.[39]

There is, firstly, a *proliferation of sources of disinformation* with mass user-created content on social media. Second, the *speed of disinformation* accelerates through virality of social media network and the automation of computer propaganda. There is also greater scope for *anonymity of disinformation* with the ability to disguise true identities and non-human sources such as 'fake bots'. Digital campaigning resources easily have *extra-territorial reach* with no necessity for the source of the disinformation to be in the same territory as the target. These last two circumstances expand the possibility of *foreign-sourced disinformation* (see Box 3: Foreign digital interference in politics).

Data, data analytics and micro-targeting amplify *potency of disinformation.* Artificial intelligence creates *new forms of disinformation* such as 'deep fakes'. All this compounds the challenge of *detecting disinformation* with disinformation sometimes occurring in subterranean ways not visible to regulatory authorities and in new technological forms that cannot easily be identified as disinformation.

The *principle of political freedoms* has two central aspects when it comes to digital campaigning resources. There is freedom of expression with a mixed picture of social media dramatically

<https://doi.org/10.1080/10584609.2019.1661889>, accessed 21 October 2025; G. López-García et al., *Politics of Disinformation: The Influence of Fake News on the Public Sphere* (Hoboken, N.J.: John Wiley & Sons, 2021).

[38] House of Commons, Digital, Culture, Media and Sport Committee, *Disinformation and 'Fake News': Interim Report* (Fifth Report of Session 2017–19, HC 363, 29 July 2018), p. 10, <https://publications.parliament.uk/pa/cm201719/cmselect/cmcumeds/363/363.pdf>, accessed 20 October 2025.

[39] P. N. Howard, *Lie Machines: How to Save Democracy from Troll Armies, Deceitful Robots, Junk News Operations, and Political Operatives* (New Haven: Yale University Press, 2020).

expanding platforms for expression while affording ample scope for digital censorship by governments and conferring power on digital companies as arbiters of content. The other relevant aspect of political freedoms is voter privacy which comes to the fore with the collection, accumulation and use of personal data (including individual profiles and micro-targeting).[40]

The last principle, *self-determination,* is derived from the 'core idea' underpinning democracy – 'human self-determination or autonomy'.[41] This principle which has a close connection to sovereignty is significant in various ways. When there is manipulation through micro-targeting and deception through disinformation, individual self-determination is compromised; when these occur at scale, collective self-determination is undermined. Society-wide behaviour modification through digital campaigning resources poses serious challenges for both individual and collective self-determination. Foreign interference has the intent and impact of damaging collective self-determination as a nation-state (see Box 3: Foreign digital interference in politics). When these effects undermine self-determination through elections, the integrity of elections is imperilled.[42]

Less obviously, polarisation, echo chambers and filter bubbles fuelled by digital campaigning resources corrode solidarity that is essential to democracies as systems of collective self-determination. It is vital to recognize here that solidarity is a democratic principle. As International IDEA has explained, solidarity 'refers to the ties in a society that bind different people to one another, expressing social bonds rather than autonomous individual ties'.[43]

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[40] M. Paterson and N. Witzleb, 'Voter privacy in an era of big data: Time to abolish the political exemption in the Australian Privacy Act', in N. Witzleb, M. Paterson and J. Richardson (eds), *Big Data, Political Campaigning and the Law: Democracy and Privacy in the Age of Micro-Targeting* (Abingdon, Oxon: Routledge, 2020); E. F. Judge and M. Pal, 'Voter privacy and big-data elections', *Osgoode Hall Law Journal*, 58/1 (2021), pp. 1–55, <https://doi.org/10.60082/2817-5069.3631>, accessed 21 October 2025.

[41] S. E. Skaaning and A. Hudson, *The Global State of Democracy Indices Methodology: Conceptualization and Measurement Framework, Version 9* (International IDEA, 2025), pp. 7–8, <https://www.idea.int/publications/catalogue/gsod-indices-methodology-version-9-2025>, accessed 21 October 2025.

[42] H. A. Garnett and T. S. James, 'Cyber elections in the digital age: Threats and opportunities of technology for electoral integrity', *Election Law Journal*, 19/2 (2020), pp. 111–26, <https://doi.org/10.1089/elj.2020.0633>, accessed 21 October 2025.

[43] 'Principles and mediating values', *International IDEA*, 2025, <https://www.idea.int/data-tools/tools/state-democracy-assessments/state-local-democracy-framework/principles-and-mediating-values> (under 'Solidarity'), accessed 21 October 2025.

Box 3: Foreign digital interference in politics

Russian covert interference in the 2016 United States Presidential elections has placed foreign interference through digital campaigning resources firmly on the public agenda. Amongst others, Such interference was carried out via anonymous social media campaigns based on divisive issues through groups not required to file reports with the Federal Election Commission.[44]

Russia, however, is not alone in engaging in such interference. The United States has also engaged in such conduct.[45] One study has warned that '(e)vidence of election interference by foreign States or their proxies has become a regular feature of national elections and is likely to get worse in the near future'.[46]

Foreign interference is often characterised by a subversive mode of digital campaigning focussed on demobilization and spreading disinformation as distinct from a scientific mode geared towards mobilization and informing voters.[47] Key digital techniques used by foreign governments to 'dox democracy'[48] are hacking attacks on digital systems and databases; mass disinformation campaigns; micro-targeted manipulation; and trolling operations.[49]

Regulatory challenges of digital campaigning resources

Regulation and its effectiveness will profoundly shape the uses of digital campaigning resources and their impact on democracy. Digital campaigning resources pose four regulatory challenges.

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[44] Y. M. Kim et al., 'The stealth media? Groups and targets behind divisive issue campaigns on Facebook', *Political Communication*, 35/4 (2018), pp. 515–41, <https://doi.org/10.1080/10584609.2018.1476425>, accessed 21 October 2025.

[45] M. Landon-Murray, E. Mujkic and B. Nussbaum, 'Disinformation in contemporary US foreign policy: Impacts and ethics in an era of fake news, social media, and artificial intelligence', *Public Integrity*, 21/5 (2019), pp. 512–22, <https://doi.org/10.1080/10999922.2019.1613832>, accessed 21 October 2025.

[46] D. B. Hollis and J. D. Ohlin, *Defending Democracies: Combating Foreign Election Interference in a Digital Age* (New York: Oxford University Press, 2021). See also D. L. Sloss, *Tyrants on Twitter: Protecting Democracies from Information Warfare* (Stanford: Stanford University Press, 2022).

[47] A. Roemmele and R. Gibson, 'Scientific and subversive: The two faces of the fourth era of political campaigning', *New Media & Society*, 22/4 (2020), pp. 595–610, <https://doi.org/10.1177/1461444819893979>, accessed 21 October 2025.

[48] I. Hansen and D. J. Lim, 'Doxing democracy: Influencing elections via cyber voter interference', *Contemporary Politics*, 25/2 (2019), pp. 150–71, <https://doi.org/10.1080/13569775.2018.1493629>, accessed 21 October 2025.

[49] C. Tenove et al., *Digital Threats to Democratic Elections: How Foreign Actors Use Digital Techniques to Undermine Democracy* (Centre for the Study of Democratic Institutions, University of British Columbia, Research Report, 2018), <https://dx.doi.org/10.2139/ssrn.3235819>, accessed 21 October 2025.

There is, firstly, the challenge of providing regulation of *adequate scope.* Central will be effective political finance laws.[50] Also important are requirements as to authorisation of electoral communication and prohibitions relating to disinformation. In addition, the challenges of digital campaigning resources urgently calls for regulatory scope to extend beyond conventional electoral regulation to regulation of data and its uses (particularly voter data);[51] laws dealing with foreign interference; and bespoke regulation for AI and other forms of machine learning.

The second challenge goes to the content of regulation. Such content ought to be anchored in the four democratic principles discussed earlier (transparency; fairness; political freedoms; self-determination) – these principles should operate as *regulatory principles.*

Third, *regulatory authorities* need to be *fit-for-purpose.* They need to have sufficient powers to regulate a fast-moving area with powerful actors such as the party-in-government and dominant digital companies. Effective exercise of these powers will demand deep expertise, constant agility and, most critically, staunch independence.[52] In many cases, electoral management bodies will not be the sole regulatory authority. Authorities operating in this space may include privacy regulators and national security agencies. This gives rise to the imperative of coordination amongst the regulatory authorities.

Finally, there is the challenge of ensuring that regulation address the pivotal place of the dominant digital companies (Alphabet (Google), Amazon, Apple, Meta, Microsoft and ByteDance (TikTok)). These companies are no ordinary subjects of regulation. Due to their market share and

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[50] J. C. Tham, A. Carson, A. Aman and A. Chinnappa, *Digital Campaigning and Political Finance in the Asia and the Pacific Region: A New Age for an Old Problem* (International Institute for Democracy and Electoral Assistance and Electoral Regulation Research Network, 2022) <https://www.idea.int/publications/catalogue/digital-campaigning-and-political-finance-asia-and-pacific-region-new-age-old>, accessed 20 October 2025.

[51] Information Commissioner's Office, *Audits of Data Protection Compliance by UK Political Parties* (Summary Report, November 2020), <https://web.archive.org/web/20250314070551/https://ico.org.uk/media/action-weve-taken/2618567/audits-of-data-protection-compliance-by-uk-political-parties-summary-report.pdf>, accessed 21 October 2025.

[52] See, e.g., M. Pal, 'Electoral management bodies as a fourth branch of government', *Review of Constitutional Studies*, 21/1 (2016), pp. 85–114, <https://ssrn.com/abstract=2792626>, accessed 21 October 2025; C. van Ham and H. A. Garnett, 'Building impartial electoral management? Institutional design, independence and electoral integrity', *International Political Science Review*, 40/3 (2019), pp. 313–34, <https://doi.org/10.1177/0192512119834573>, accessed 21 October 2025; P. Kildea, 'The constitutional role of electoral management bodies: The case of the Australian Electoral Commission', *Federal Law Review*, 48/4 (2020), pp. 469–82, <https://doi.org/10.1177/0067205X20955097>, accessed 21 October 2025; M. Langford, R. Schiel and B. M. Wilson, 'The rise of electoral management bodies: Diffusion and effects', *Asian Journal of Comparative Law*, 16/S1 (2021), pp. S60–S84, <https://doi.org/10.1017/asjcl.2021.29>, accessed 21 October 2025; T. S. James and H. A. Garnett, 'Electoral management', in D. Schultz and J. Toplak (eds), *Routledge Handbook of Election Law* (London: Routledge, 2023).

business models, *'big tech' companies exercise regulatory power,* that is, the power to set rules and processes in the digital world, including in relation to digital campaigning resources.